

Tentative Rulings and Resolution Review Hearings

July 6, 2026

Department 63

This Court does not follow the procedures described in Rules of Court, Rule 3.1308(a). Tentative rulings are available online no less than 12 hours in advance of the time set for hearing. Tentative rulings may be found on the court's website (www.shasta.courts.ca.gov) and are available by clicking on the "Tentative Rulings" link under the "Online Services" tab. A QR code that links to the tentative rulings is posted outside the courtroom. A party is not required to give notice to the Court or other parties of intent to appear to present argument.

*****IMPORTANT: PLEASE NOTE THAT THE COURT NO LONGER USES COURTCALL. REMOTE APPEARANCES MAY NOW BE MADE THROUGH WEBEX.*****

Remote appearances through WebEx are generally permitted on the Law & Motion and Resolution Review calendars and can be made without leave of Court.

To appear through WebEx, please follow these instructions:

Call 1-(844) 517-1271 at least 10 minutes before your hearing start time.

The access code is 2482 635 4223. There is no attendee ID number, so just follow verbal instructions for prompt.

Once you have gained access, wait for the court to start the calendar. Please follow these instructions once a calendar is called:

1. Please mute your telephone until your case is called.
2. Please do not place the call on hold.
3. Minimize all background noise during your call.
4. Please identify yourself, each time, prior to addressing the court.
5. Disconnect when the court has completed your case or cases.
6. The court prohibits the recording of these proceedings.

8:30 a.m. – Law & Motion

ADK PROPERTIES LLC, ET AL. VS. FPI MANAGEMENT, INC., ET AL.

CASE NUMBER: 26CV-0210272

Tentative Ruling on Demurrer and Motion to Strike: Due to the voluminous calendar, there was insufficient time to review this matter and prepare detailed tentative rulings. In the interest of judicial economy and based on the Court's inherent authority to control its own calendar, hearings on both motions are continued to **Monday, July 13, 2026 at 8:30 a.m. in Department 63**. Should a July 13, 2026 hearing date pose an issue for either party, the parties are ordered to meet and confer regarding a new hearing date and appear to request a new date. Absent the need to select a different hearing date, **no appearance is necessary on today's calendar.**

BAKER VS. SMITH, ET AL.

CASE NUMBER: 26CV-0209620

Proposed Tentative on Motion for Leave to File First Amended Complaint: Plaintiff Robert Wayne Baker seeks leave to file a First Amended Complaint. The Proof of Service indicates service on Defendants' counsel by mail on June 16, 2026. This is not timely as all moving papers must be filed and served no less than sixteen